

2022-10-14 | NF-WP-221014-01

Weserfunken Präzisionsbau GmbH

Individually Negotiated Unsecured SME Loan Agreement

1 Parties and Commercial Purpose | Loan NF-WP-221014-01

1.1

Nexora Frontbank AG, Schottenring 18, 1010 Wien, Österreich, registered with Handelsgericht Wien under FN 582741 b, enters into this agreement as the original lender. Its contractual contact is Dr. Falk Neubauer. Weserfunken Präzisionsbau GmbH, Hüttenstraße 43, 28237 Bremen, registered with Amtsgericht Bremen under HRB 38124 HB, enters into this agreement as borrower, represented by its managing director, Martin Grothe.

1.2

The Borrower manufactures valve blocks and measuring housings for maritime propulsion technology and employs eighteen people. The financing supports that operating business, including materials, production expenditure and working capital pending collection of customer invoices. The Borrower shall use the proceeds for its own commercial operations. The facility does not finance private expenditure by its managing director, employees or shareholders and is not a consumer loan.

1.3

The Lender agrees to advance EUR 500,000 without security. The Borrower agrees to pay eighteen monthly interest instalments of EUR 5,000 and to repay the entire principal at final maturity. The parties individually agree the amount, fixed rate, bullet repayment structure, absence of origination charges and allocation of operational responsibilities recorded here. No general banking terms, platform conditions or separate fee schedule are incorporated by reference.

1.4

This agreement is dated 14 October 2022 and identifies the facility exclusively as NF-WP-221014-01. References to the Lender mean Nexora Frontbank AG until an effective contractual substitution and thereafter the properly substituted lender. A contemplated transfer to Vellio Finance GmbH requires the separate express consent and assumption arrangements described in clause 13; merely naming that company here does not itself replace the Lender.

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2 Facility Structure and Interpretation | Loan NF-WP-221014-01

2.1

The facility is a single advance of EUR 500,000, denominated and repayable in euro. It is neither a revolving credit line nor an overdraft. Amounts repaid cannot be redrawn. The agreed commercial tenor comprises eighteen fixed monthly interest periods, beginning with the disbursement on 14 October 2022 and ending with final repayment on 15 April 2024. No interim principal amortisation is scheduled.

2.2

The nominal borrowing rate is fixed at twelve per cent per annum. Each scheduled monthly instalment equals EUR 500,000 multiplied by twelve per cent and divided by twelve, producing EUR 5,000. Scheduled interest therefore totals EUR 90,000, and scheduled principal and interest together total EUR 590,000. These totals assume performance of the agreed schedule, without early repayment, default or a legally required adjustment.

2.3

A Banking Day means a day other than Saturday or Sunday on which banks in Bremen and Vienna are open for ordinary euro payments and the euro settlement system is operating. A payment falling on another day becomes due on the next Banking Day. That adjustment does not increase interest, shorten the following fixed period or defer the identification of the scheduled interest instalment.

2.4

All clock times in the execution and disbursement records are local Central European Summer Time, UTC+02:00, on 14 October 2022. A reference to a clause is to this agreement unless expressly stated otherwise. Headings identify subject matter but do not replace operative wording. Principal means the amount actually advanced and remaining unpaid, not the purchase price of a later transfer between finance parties.

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3 Advance and Availability of Funds | Loan NF-WP-221014-01

3.1

The Lender shall make the full EUR 500,000 available to the Borrower on 14 October 2022 by euro bank transfer to the Borrower's operating account designated for disbursement. The parties record the disbursement timestamp as 10:11:00 UTC+02:00. The Lender shall retain the corresponding payment record identifying the Borrower, the amount and this loan reference, and shall supply a copy on reasonable request.

3.2

Disbursement must be made without deduction of an arrangement fee, platform fee, origination charge, purchase discount or reserve. The Borrower's obligation to repay principal corresponds to funds made available to it, not to an internal accounting entry between the Lender and another finance party. A payment by a purchaser of this facility to the Lender is separate consideration and is not an additional advance to the Borrower.

3.3

Execution by the authorised representatives identified on the final page is the contractual condition for the advance. There is no further drawdown request, security document or shareholder guarantee to be delivered. Any identity or authority verification performed by the Lender remains its responsibility and does not permit it to deduct its administrative expenses from the agreed principal or add them to the Borrower's debt.

3.4

The Borrower shall promptly notify the Lender of any discrepancy between the agreed principal and funds actually credited. The Lender shall investigate and correct a demonstrated shortfall without imposing a second interest charge. Receipt of a payment confirmation does not waive a claim for an undelivered amount. The facility cannot be increased by an account statement, an automated platform message or the Borrower's silence.

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4 Fixed Interest and Period Boundaries | Loan NF-WP-221014-01

4.1

The first fixed interest period runs from disbursement on 14 October 2022 to the scheduled payment date of 15 November 2022. Each subsequent fixed period runs from the preceding scheduled payment date to the next scheduled payment date. The eighteenth period ends on 15 April 2024. Each period carries the same EUR 5,000 interest amount while the entire principal remains outstanding under the agreed schedule.

4.2

The parties expressly select fixed monthly amounts rather than daily accrual for scheduled performance. The initial interval between 14 October and 15 November does not generate an additional day of interest, a separate broken-period charge or a nineteenth instalment. Calendar-month length and leap-year days likewise do not alter the stated amounts. A Banking Day adjustment affects the payment deadline only, without additional interest for the intervening days.

4.3

The twelve per cent nominal rate is not variable and is not linked to a reference rate, the Lender's funding costs or a platform score. Neither a transfer of the facility nor a change in the identity or funding arrangements of the Lender permits repricing. The Lender shall not compound scheduled interest or increase principal by capitalising an unpaid interest instalment without a separate lawful agreement.

4.4

The payment dates and amounts in clauses 5 and 6 constitute the complete ordinary interest schedule. The Borrower may request a calculation explaining any claimed departure from it. Early repayment is addressed in clause 7 and payment default in clause 12. Neither provision authorises duplicate compensation for the same period or makes the contractual interest rate conclusive evidence that every charge is legally recoverable.

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5 Interest Schedule: Periods 1 to 9 | Loan NF-WP-221014-01

5.1

For period 1, the Borrower shall pay EUR 5,000 interest on 15 November 2022. For period 2, it shall pay EUR 5,000 interest on 15 December 2022. For period 3, it shall pay EUR 5,000 interest on 15 January 2023, subject to the Banking Day adjustment. These three instalments total EUR 15,000 and do not include any repayment of the EUR 500,000 principal.

5.2

For period 4, the Borrower shall pay EUR 5,000 interest on 15 February 2023. For period 5, it shall pay EUR 5,000 interest on 15 March 2023. For period 6, it shall pay EUR 5,000 interest on 15 April 2023, subject to the Banking Day adjustment. After these six scheduled instalments, cumulative scheduled interest is EUR 30,000 and the scheduled principal balance remains EUR 500,000.

5.3

For period 7, the Borrower shall pay EUR 5,000 interest on 15 May 2023. For period 8, it shall pay EUR 5,000 interest on 15 June 2023. For period 9, it shall pay EUR 5,000 interest on 15 July 2023, subject to the Banking Day adjustment. The first nine instalments together total EUR 45,000; none is a fee for introducing or transferring the loan.

5.4

Each payment shall quote NF-WP-221014-01 and identify the relevant scheduled date. The Lender shall allocate it to that instalment and provide a payment history distinguishing due dates from actual receipt dates. A weekend adjustment shall not be recorded as an arrear before the adjusted deadline. Cumulative figures in this clause describe the agreed schedule and do not constitute an acknowledgement that a future payment has already been received.

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6 Interest Schedule: Periods 10 to 18 and Maturity | Loan NF-WP-221014-01

6.1

For period 10, the Borrower shall pay EUR 5,000 interest on 15 August 2023. For period 11, it shall pay EUR 5,000 interest on 15 September 2023. For period 12, it shall pay EUR 5,000 interest on 15 October 2023. The Banking Day rule applies to each date where required. Cumulative scheduled interest after period 12 is EUR 60,000, with no scheduled reduction of principal.

6.2

For period 13, the Borrower shall pay EUR 5,000 interest on 15 November 2023. For period 14, it shall pay EUR 5,000 interest on 15 December 2023. For period 15, it shall pay EUR 5,000 interest on 15 January 2024. These payments bring cumulative scheduled interest to EUR 75,000. They do not accelerate, replace or prepay the final three interest instalments.

6.3

For period 16, the Borrower shall pay EUR 5,000 interest on 15 February 2024. For period 17, it shall pay EUR 5,000 interest on 15 March 2024. For period 18, it shall pay EUR 5,000 interest on 15 April 2024. On that final date, it shall also repay the EUR 500,000 principal in a single bullet payment, making the final scheduled payment EUR 505,000.

6.4

The eighteen interest instalments total EUR 90,000. Together with the single principal repayment, the Borrower's scheduled payments total EUR 590,000. No balloon amount additional to that principal is due. The Lender shall separately identify principal and the final interest instalment in its closing statement, even if the Borrower makes one combined transfer. The Banking Day rule applies without increasing the aggregate scheduled interest.

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7 Payment Mechanics and Early Repayment | Loan NF-WP-221014-01

7.1

The Borrower shall pay in euro to the account notified in a durable written communication by the person then entitled as Lender. An effective tripartite transfer may itself supply that instruction. A change of account must identify its holder and this facility and must be authenticated through the established contractual contact before implementation. The Borrower need not follow an inconsistent message from an unverified sender.

7.2

Payment is effective when credited to the properly designated account, subject to statutory debtor protections. The Borrower retains statutory rights of set-off, retention and discharge. The Lender shall honour an effective allocation made by the Borrower; absent one, statutory allocation rules apply. A disputed entry shall be investigated against the underlying payment record. An account statement alone does not create an independent acknowledgement of indebtedness.

7.3

The Borrower may repay all or part of the principal early upon ten Banking Days' written notice without a prepayment premium. Completed fixed periods remain payable. For an incomplete period, interest is calculated proportionately by actual elapsed days within that scheduled period and by the principal outstanding during those days. Later fixed instalments decrease in the same proportion as principal; repaid principal attracts no further ordinary interest.

7.4

The Lender shall provide an early repayment calculation and revised schedule before the notified repayment date. Early repayment does not create a redraw right or shorten the remaining contractual maturity unless expressly agreed. Statutory termination and repayment rights remain available independently. On full discharge, the Lender shall provide a closing account showing principal, interest, payments and any separately established recoverable amount, without charging a closure fee.

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8 Business Use and Unsecured Status | Loan NF-WP-221014-01

8.1

The Borrower shall apply the advance to its Bremen manufacturing business, including procurement of materials for maritime valve blocks and measuring housings, production costs and ordinary working capital. It may allocate funds between those purposes as operational requirements change. No fixed purchasing quota, named supplier or individual customer contract is made a condition of this financing. The Borrower retains responsibility for production and commercial decisions.

8.2

The facility is unsecured. This agreement creates no pledge, mortgage, assignment by way of security, retention of title, account control arrangement or charge over receivables, inventory or machinery. Martin Grothe does not borrow or guarantee repayment personally. Neither Jutta Kröger, the Borrower's accounting contact, nor any employee becomes a co-debtor by administering payments or providing financial information under this agreement.

8.3

The Borrower shall maintain ordinary business records and comply with laws applicable to its operations. It shall not intentionally divert the advance to shareholder distributions or unrelated private expenditure. Ordinary wages, supplier payments and operating expenses remain permitted. The Lender receives no right to manage the Borrower's workforce, approve individual manufacturing orders or collect the Borrower's customer receivables directly under this agreement.

8.4

No shareholder, parent company or other third party promises financial support through this agreement. In particular, naming Asterquay Holding SE does not make it a lender, security provider or guarantor. The absence of collateral is part of the agreed financing structure, not an undertaking to deliver collateral later. A request for additional security therefore requires a separate agreement and cannot itself amend the fixed pricing or payment schedule.

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9 Financial Information and Account Access | Loan NF-WP-221014-01

9.1

While principal remains outstanding, the Borrower shall provide its annual accounts within thirty days after their approval and ordinary quarterly management figures within forty-five days after each quarter. Information shall address turnover, liquidity, receivables and material payment obligations relevant to repayment. The Lender shall not require audited interim statements where these are not otherwise prepared, or impose a separate reporting platform as a chargeable condition.

9.2

The Borrower shall promptly notify the Lender when it becomes aware of a material disruption to production or liquidity that reasonably threatens performance of this facility. Such notice shall describe the issue and any proposed response to the extent then known. Providing a forecast does not guarantee future trading results. The Borrower shall distinguish estimates from established figures and correct material errors it subsequently identifies.

9.3

Jutta Kröger may coordinate routine accounting communications for the Borrower. That administrative role does not authorise her to increase principal, change the fixed interest rate, consent to a contractual substitution or waive the Borrower's claims. Those acts require a representative with appropriate corporate authority. The Lender shall direct material contractual notices to the Borrower's managing director at the address stated in clause 1.

9.4

The Lender shall maintain an intelligible loan account and provide a transaction statement on reasonable request, showing amounts received, value dates, allocation and the remaining balance. Information requests shall be proportionate to this unsecured facility and respect customer confidentiality. The Borrower need not disclose technical manufacturing drawings where ordinary financial records adequately answer the request. The Lender shall not treat silence following a statement as approval of an incorrect balance.

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10 Authority, Information and Lender Performance | Loan NF-WP-221014-01

10.1

Each party represents that it has the corporate capacity and internal authority necessary to enter into and perform this agreement. Each person executing it confirms authority to bind the identified company, not personal liability for that company's obligations. The Borrower's managing director acts for the Borrower in accepting the facility and its payment obligations. The Lender remains responsible for the authority of the employee executing on its behalf.

10.2

The Borrower shall provide information about its business and repayment resources honestly and with reasonable care. It does not warrant a particular future order volume, customer payment date or refinancing outcome. The Lender shall assess the credit exposure on its own responsibility and shall not describe the unsecured facility as protected by collateral, a government guarantee or a commitment from the Borrower's shareholders that has not been agreed.

10.3

The Lender shall perform the disbursement obligation, administer the loan account accurately and give clear payment instructions. It shall correct erroneous charges and return amounts received without entitlement, subject to applicable law. If the lender position is effectively transferred, the incoming lender must assume these continuing contractual duties. The original lender remains answerable for independently incurred liabilities arising from its own conduct before that transfer.

10.4

The parties' description of this facility as individually negotiated records their agreement on its commercial terms; it does not exclude mandatory controls or establish a conclusive presumption about statutory requirements. Neither party waives claims for inaccurate pre-contractual information, fraud, culpable misrepresentation or other independently actionable conduct. The fixed rate and the Borrower's business status do not by themselves settle any legal objection to the transaction.

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11 Charges, Taxes and Transaction Expenses | Loan NF-WP-221014-01

11.1

No arrangement fee, origination fee, processing fee, commitment fee, brokerage commission, platform charge or contractual account maintenance charge is payable by the Borrower for this facility. The Lender shall neither deduct such an amount from the advance nor add it to principal or interest. Ordinary administration, payment allocation, transfer documentation and issue of routine statements are covered without additional compensation from the Borrower.

11.2

Each finance party shall bear its own funding, origination and transaction expenses. Any purchase price payable for a transfer of the lender position is owed solely by the purchaser to the seller. Any fee or allocation agreed between Nexora Frontbank AG, Vellio Finance GmbH or another finance business remains outside the Borrower's payment obligations and cannot be recovered through a disguised increase in a scheduled instalment.

11.3

If mandatory law requires the Borrower to withhold tax from a payment, it shall make the required remittance to the competent authority and provide available evidence to the Lender. This agreement creates no contractual gross-up obligation. The parties shall reasonably cooperate in obtaining lawful relief or correcting an erroneous withholding. Each remains responsible for taxes imposed on its own income and for its own reporting obligations.

11.4

The Borrower remains responsible for ordinary charges independently agreed with its own payment service provider. Those charges are not consideration payable to the Lender and do not change this loan's scheduled EUR 590,000 aggregate. Following a breach, only costs recoverable under applicable law may be claimed, with their basis and amount explained. No fixed collection surcharge, automatic legal-fee indemnity or internal staff charge is established by this agreement.

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12 Term, Breach and Remedies | Loan NF-WP-221014-01

12.1

The facility continues until the final maturity of 15 April 2024 unless earlier discharged or lawfully terminated. The Lender has no contractual right to demand early repayment merely because its funding costs increase, its investment policy changes or the loan is transferred. Statutory rights of extraordinary termination remain available subject to their actual requirements; this agreement does not deem those requirements satisfied by a platform classification.

12.2

If a scheduled payment is not received when due, the Lender shall send a notice identifying the instalment, the unpaid amount and the payment account. Before relying on that failure for contractual acceleration, it shall allow ten Banking Days for payment. Statutory default consequences remain governed by applicable law. An adjusted Banking Day deadline must have expired before the Lender treats the relevant instalment as overdue.

12.3

For a remediable material non-monetary breach, the Lender shall identify the conduct and allow twenty Banking Days to remedy it before seeking termination on that ground, unless mandatory law permits immediate action in the circumstances. No breach under an unrelated contract automatically accelerates this loan. A late accounting report is not by itself a demand for immediate repayment where the delay has no material bearing on repayment risk.

12.4

Following lawful acceleration, the Lender may claim outstanding principal, properly accrued interest and any independently recoverable statutory amount, but not automatically all future unearned interest. Default interest on overdue principal must be stated separately and cannot duplicate ordinary interest for the same exposure and period. Overdue interest is not itself subject to default interest. Insolvency-related enforcement and termination remain subject to mandatory insolvency law.

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13 Transfer of the Lender Position | Loan NF-WP-221014-01

13.1

A complete transfer of the Lender's contractual position requires an agreement among the Borrower, the outgoing lender and the incoming lender. The Borrower must expressly consent to the substitution, and the incoming lender must expressly assume the continuing duties as well as the rights. A notice of assignment or appointment of a collection agent alone does not satisfy those requirements or release the outgoing lender from future contractual duties.

13.2

The contemplated incoming lender is Vellio Finance GmbH, Radetzkystraße 12, 8010 Graz, Österreich, registered with Landesgericht für Zivilrechtssachen Graz under FN 591826 m. If the parties execute their tripartite Transfer and Assumption Agreement effective at 12:30:00 UTC+02:00 on 14 October 2022, Vellio Finance GmbH shall replace Nexora Frontbank AG as Lender from that time on the terms of that agreement.

13.3

An effective substitution shall leave principal, maturity, interest amounts, the absence of collateral and the Borrower's existing defences unchanged. It shall carry all future rights to principal and interest and the corresponding account administration, correction and communication duties. The original bank shall have no continuing servicing role. A purchase price paid between the finance parties shall neither discharge nor increase the Borrower's principal obligation.

13.4

The outgoing lender's release from future performance does not release liabilities independently incurred through its own earlier conduct. No borrower claim against it is waived merely by consent to a new lender. Later transfers require the same express tripartite arrangements. The Borrower may request the operative transfer document and authenticated payment instructions without charge, and shall not be required to pay the same instalment twice because of competing lender instructions.

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14 Notices, Confidentiality and Personal Data | Loan NF-WP-221014-01

14.1

Contractual notices to the Borrower shall be addressed to Martin Grothe at Hüttenstraße 43, 28237 Bremen. Notices to Nexora Frontbank AG shall be addressed to Dr. Falk Neubauer at Schottenring 18, 1010 Wien, Österreich, or legal@nexora.example. A notice must identify NF-WP-221014-01 and its subject. Receipt, rather than mere dispatch, determines effectiveness unless mandatory law provides otherwise. The sender shall retain evidence of delivery.

14.2

Following an effective substitution by Vellio Finance GmbH, lender notices shall instead be addressed to Nora Wendt at Radetzkystraße 12, 8010 Graz, Österreich, or servicing@vellio.example. The substituted lender shall acknowledge a material contractual communication within a reasonable time. Each party shall notify address changes through its established contact. Neither a portal upload without notification nor an automated failed-delivery message establishes receipt by the intended recipient.

14.3

The parties shall protect non-public commercial information obtained through this financing and disclose it only as needed for performance, professional advice, a permitted transfer or compliance with law. Recipients must be subject to appropriate confidentiality duties where legally possible. Disclosure to a court, regulator or lawfully appointed insolvency officeholder is permitted to the extent required or justified by the relevant proceedings and shall not be obstructed by this clause.

14.4

Personal information concerning directors and employees shall be processed only for a lawful purpose connected with this facility and retained no longer than law and legitimate recordkeeping require. Consent to a lender substitution is not blanket consent to marketing or unrelated data sharing. A transferring lender may retain records necessary for legal obligations and its own historic responsibilities, without retaining an operational mandate to administer the transferred loan.

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15 Governing Law and Contractual Jurisdiction | Loan NF-WP-221014-01

15.1

This agreement and the contractual obligations arising from it are governed by German substantive law. The choice does not exclude overriding mandatory rules applicable irrespective of the chosen law. The agreement is made in English; any translation assists communication only unless expressly adopted by both parties. Neither the location of the Lender nor a later change of lender changes the substantive law selected here.

15.2

For contractual disputes arising out of or in connection with this agreement, including its formation, validity, interpretation, performance and termination, the parties agree exclusive jurisdiction of the courts in Vienna, Austria, having the appropriate subject-matter jurisdiction. This is a mutual jurisdiction agreement, not an option exercisable only by the Lender. It does not prevent interim protective measures available from another competent court under applicable law.

15.3

The Vienna agreement does not displace mandatory insolvency jurisdiction. In particular, jurisdiction for actions deriving directly from insolvency proceedings and closely connected with them remains governed by the applicable insolvency rules, including Article 6 of Regulation (EU) 2015/848. The involvement of an insolvency officeholder alone does not classify every claim as an insolvency action. Additional non-contractual claims remain subject to the jurisdiction rules applicable to their own legal character.

15.4

Changes should be recorded in a durable written agreement identifying this facility, without excluding the priority of legally effective individual agreements or mandatory formal requirements. Invalidity of a provision does not authorise unilateral replacement or preservation of an unlawful charge; the consequences follow applicable law. This document records the agreed facility terms but does not waive pre-contractual duties, independent claims, statutory defences or mandatory rights of third parties.

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16 Execution and Disbursement Record | Loan NF-WP-221014-01

16.1

The parties execute this sixteen-page agreement on 14 October 2022. Each adopts the typed name line below as its representative's method of execution and agrees to exchange and retain the complete text in a durable record. The name lines identify the individuals acting for the companies; they are not representations of handwritten signatures. No witness, personal guarantee or execution by a shareholder is required under this agreement.

16.2

For Nexora Frontbank AG, the typed name is Dr. Falk Neubauer. Dr. Falk Neubauer executes as the Bank's duly authorised employee and confirms authority to agree the advance, pricing, unsecured terms and jurisdiction provision on its behalf. The execution date is 14 October 2022, before the disbursement recorded in clause 16.4. His execution binds Nexora Frontbank AG in its capacity as original lender.

16.3

For Weserfunken Präzisionsbau GmbH, the typed name is Martin Grothe. Martin Grothe executes as managing director with authority to bind the Borrower to the complete agreement, including its payment schedule and jurisdiction provision. The execution date is 14 October 2022, before the disbursement recorded in clause 16.4. He does not execute in a personal borrowing capacity or assume personal responsibility for repayment.

16.4

The completion record identifies loan NF-WP-221014-01 and records the EUR 500,000 disbursement from Nexora Frontbank AG to Weserfunken Präzisionsbau GmbH at 2022-10-14T10:11:00+02:00. That payment follows execution and is the single advance under this agreement. Any later 12:30 contractual substitution and 12:31 purchase-price settlement are governed and recorded separately; neither is a second disbursement to the Borrower or an amendment to the interest schedule.